Instructions for Application for T Nonimmigrant Status

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form I-914
OMB No. 1615-0099
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What Is the Purpose of This Form I-914?

You should use Form I-914, Application for T Nonimmigrant Status, to request temporary immigration benefits if you are a victim of a severe form of trafficking in persons. For a definition of a victim of a severe form of trafficking in persons, see the **Evidence to Establish T Nonimmigrant Status** section of these Instructions.

Who May File This Form I-914?

You, the victim of a severe form of trafficking in persons, should file Form I-914. You may file Form I-914, Supplement A, Application for Derivative T Nonimmigrant Status, with your Form I-914 now or at a later date for your eligible family members.

1. **Principal Applicant.** You must demonstrate all of the following:
   - **A.** You are or have been a victim of a severe form of trafficking in persons;
   - **B.** You are physically present in the United States at the time of filing your application. You can establish physical presence if you meet one of the criteria below:
     - **(1)** You are physically present in the United States, American Samoa, or the Commonwealth of the Northern Mariana Islands, or at a port of entry, on account of trafficking in persons; or
     - **(2)** You were allowed entry into the United States to participate in investigative or judicial processes associated with an act or a perpetrator of trafficking;
   - **C.** You have complied with any reasonable request for assistance from a Federal, State, Tribal, or local agency that has the authority to detect, investigate or prosecute acts of trafficking or the investigating of a crime where the acts of trafficking are at least one central reason for the commission of that crime, unless:
     - **(1)** You are under 18 years of age; or
     - **(2)** You are unable to cooperate with a request due to physical or psychological trauma; and
   - **D.** You would suffer extreme hardship involving unusual and severe harm upon removal.
2. As the Principal Applicant, you may file for your eligible family member using Form I-914, Supplement A, when you file your Form I-914. You may also file for your eligible family member while your Form I-914 is pending or when you are in T-1 nonimmigrant status.
   - **A.** If you are under 21 years of age, you may file for the following family members:
     - **(1)** Spouse;
     - **(2)** Unmarried child(ren) under 21 years of age;
     - **(3)** Parent(s); and/or
     - **(4)** Unmarried sibling(s) under 18 years of age.

If you filed your Form I-914 when you were under 21 years of age, you may continue to file for these family members until your application is adjudicated. Your parent or unmarried sibling will remain eligible for a T visa even if you turn 21 years of age before your application is adjudicated. Similarly, if you have an unmarried sibling, he or she will remain eligible even if he or she is over 18 years of age at the time your application is adjudicated.

B. If you are over 21 years of age, you may file for the following eligible family members:

(1) Spouse; and/or

(2) Unmarried child(ren) under 21 years of age.

USCIS will continue to consider your unmarried child as an eligible family member if the child was under 21 years of age at the time you filed your Form I-914, even if he or she turns 21 years of age before your application is adjudicated.

C. Regardless of your age at the time of filing, if your family member faces a present danger of retaliation, as a result of your escape from the severe form of trafficking in persons or your cooperation with law enforcement, you may file for the following eligible family members:

(1) Parent(s);

(2) Unmarried sibling(s) under 18 years of age; and/or

(3) An adult or minor child of your derivative (your grandchild, your spouse's child, your niece or nephew, or your sibling).

NOTE: Although applications for all eligible family members can be filed concurrently, to approve the application for the adult or minor child of a derivative family member, USCIS must have already approved the Form I-914, Supplement A for their parent.

General Instructions

We provide free forms through the USCIS website. To view, print, or complete our forms, you should use the latest version of Adobe Reader, which you can download for free at **get.adobe.com/reader/**. If you do not have internet access, you may call the USCIS Contact Center and ask that we mail a form to you.

Signature. You (or your signing authority) must properly complete your application. USCIS will not accept a stamped or typewritten name in place of any signature on this application. If you are under 14 years of age, your parent or legal guardian may sign the application on your behalf. A legal guardian may also sign for a mentally incompetent person. If your application is not signed, or if the signature is not valid, we will reject your application. See 8 CFR 103.2(a)(7)(ii)(A). If USCIS accepts a request for adjudication and determines that it has a deficient signature, USCIS may reject or deny the request.

Validity of Signatures. USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

Filing Fee. See Form G-1055, available at **uscis.gov/forms**, for specific information about the fees applicable to this form.

Copies. You should submit legible photocopies of requested documents unless the Instructions specifically instruct you to submit an original document. USCIS may request an original document at any time during our process. If we request an original document from you, we will return it to you after USCIS determines it no longer needs the original.

NOTE: If you submit original documents when they are not required or requested, **USCIS may destroy them after we receive them.**

Translations. If you submit a document with information in a foreign language, you must also submit a full English translation. The translator must sign a certification that the English language translation is complete and accurate, and that he or she is competent to translate from the foreign language into English. The certification must also include the translator's signature, printed name, the signature date, and the translator's contact information.

USCIS Contact Center. For additional information on the application and Instructions about where to file, change of address, and other questions, visit the USCIS Contact Center at **uscis.gov/contactcenter** or call at **800-375-5283** (TTY **800-767-1833**). The USCIS Contact Center provides information in English and Spanish.

Disability Accommodations/Modifications. To request a disability accommodation/modification, follow the instructions on your appointment notice or at **uscis.gov/accommodationsinfo**.

NOTE: If applicants represented by an attorney or accredited representative on the Form I-914 want that attorney or representative to also receive communications from USCIS about related filings, such as Forms I-192 or I-765, the additional form numbers must be listed in **Part 3.** of Form G-28, Notice of Entry of Appearance as Attorney or Accredited Representative.

How To Complete Form I-914, Form I-914, Supplement A, and Form I-914, Supplement B (optional)**, Form I-765** (optional)

1. Type or print legibly in black ink.
2. If you need extra space to complete any item within this application, use the space provided in **Part 9. Additional Information** or attach a separate sheet of paper. Type or print your name and Alien Registration Number (A-Number) (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.
3. Answer all questions fully and accurately, unless instructed to leave a part blank. If a question does not apply to you (for example, if you have never been married and the question asks, "Provide the name of your current spouse"), type or print "N/A" unless otherwise directed. If your answer to a question which requires a numeric response is zero or none (for example, "How many children do you have" or "How many times have you departed the United States"), type or print "None" unless otherwise directed.
4. **USCIS Online Account Number.** You will only have a USCIS Online Account Number (OAN) if you previously filed a form that has a receipt number that begins with IOE. If you filed the form online, you can find your OAN in your account profile. If you mailed us the form, you can find your OAN at the top of the Account Access Notice we sent you. If you do not have a receipt number that begins with IOE, you do not have an OAN. The OAN is not the same as an A-Number.

Completing Form I-914

You, as the principal applicant, must file Form I-914 for yourself.

This application is divided into **Parts 1. - 9.** The following information will help you fill out the application.

Part 1. Purpose for Filing This Application - Select all the appropriate boxes that apply to why you filed this application. At least one box must be selected. If you are only filing for a T-6 derivative, you should leave **Part A.** blank.

Part 2. General Information About You (Person filing this application as a victim)

1. **Your Full Legal Name.** Provide your legal name, as shown on your birth certificate, passport, or other legal document. If you have two last names, include both names and use a hyphen (-) between the names, if appropriate. Type or print your last, first, and middle names in each appropriate field.
2. **Other Names Used.** Provide all the names you have used, including aliases, maiden name, nicknames, aliases, etc.

3. **U.S. Physical Address.** Provide your physical address if it is different from your mailing address.

4. **Safe U.S. Mailing Address.** If you do not feel secure in receiving correspondence regarding this application at your home address, you may provide a "safe mailing address" in this space. This address may be a post office box, the address of a friend, your attorney, a community-based organization that is helping you, or any other address where you can safely and promptly receive mail.

5. **Alien Registration Number (A-Number)** (if any)**.** Provide your A-Number. We use your A-Number to identify your immigration records. It begins with an "A" and can be found on correspondence you have received from the Department of Homeland Security (DHS) or USCIS. If you do not have an A-Number, type or print "N/A."

6. **U.S. Social Security Number** (if any)**.** Provide your U.S. Social Security number. If you do not have a U.S. Social Security number, type or print "N/A."

7. **Sex.** Indicate whether you are male or female as provided on your birth certificate issued at the time of birth or issued closest to the time of birth or in secondary evidence you provided to USCIS, if applicable.

8. **Marital Status.** Select the appropriate box for your marital status.

9. **Date of Birth.** Provide eight numbers to show your date of birth (example: May 1, 1979, should be written (05/01/1979)

10. **Place of Birth.** Provide the name of the country where you were born. Include the city or town, state or province, and country.

11. **Country of Citizenship or Nationality.** Provide the name of the country where you are a citizen or national. This is not necessarily the country where you were born. If you do not have citizenship in any country, type or print "stateless" and provide an explanation in **Part 9. Additional Information**.

12. **Passport.** Give the number of the passport used to enter the United States. if applicable and if known. Give the location where your passport was issued. Give the date when your passport was issued, even if the passport is currently expired. If the passport you used to enter the United States is not available, include an explanation in **Part 9.**

13. **Last Entry Into the United States.** Give the date and place where you last entered the United States, regardless of whether that entry was legal or illegal.

14. **Form I-94, Arrival/Departure Record.** If U.S. Customs and Border Protection (CBP) or USCIS issued you a Form I-94, Arrival/Departure Record, provide your Form I-94 number and date that your authorized period of stay expires or expired (as shown on your Form I-94). The Form I-94 number also is known as the Departure Number on some versions of Form I-94.

    NOTE: You may visit the CBP website at **cbp.gov/i94** to obtain a paper version of an electronic Form I-94 if needed. If you cannot obtain the Form I-94 from the CBP website, it may be obtained by filing Form I-102, Application for Replacement/Initial Nonimmigrant Arrival-Departure Record, with USCIS. See Form G-1055, available at **uscis.gov/forms,** for specific information about the fees applicable to Form I-102.

    Passport and Travel Document Numbers. If you used a passport or travel document to travel to the United States, enter the passport or travel document information in the appropriate space on the application, even if the passport or travel document is currently expired.

15. **Your Current Immigration Status.** Provide your current status, regardless of how you entered the United States (visitor, student, entry without inspection, etc.).

Part 3. Additional Information About Your Application

You must answer each question. You must explain relevant information about your claim. Attach documents and evidence in support of your claim and the specific facts on which you are relying to support your claim.

Complete **Item Number 10.** to indicate whether you would like an Employment Authorization Document (EAD). If your application is approved, you will be authorized to work. USCIS will send you an EAD as evidence of your authorization to work if you indicate "Yes" for **Item Number 10**. As the principal applicant you do not need to file a Form I-765, Application for Employment Authorization Document.

Complete **Item Number 11.** to indicate whether you are applying for one or more eligible family members at this time. See the section below entitled "**Completing Form I-914 Supplement A, Application for Derivative T Nonimmigrant Status**," for information on completing an application on behalf of your eligible family member.

Part 4. Processing Information

You must answer each question. If you answer "Yes" to any of the questions, explain in the space provided in **Part 9. Additional Information**. Explain if any of the acts or circumstances relate to your having been a victim of a severe form of trafficking in persons.

Part 5. Information about Your Family Members

Even if you are not applying to bring your family members to the United States, you must provide the requested information about your spouse and children, if any, regardless of age or marital status.

Part 6. Applicant's Statement, Contact Information, Declaration, Certification, and Signature

Select the appropriate box to indicate whether you read this application yourself or whether you had an interpreter assist you. If someone assisted you in completing the application, select the box indicating that you used a preparer. Further, you must sign and date your application and provide a response to fields requesting your daytime telephone number, mobile telephone number (if any), and email address (if any). You may include a safe daytime phone number such as the number of your attorney or a community-based agency that is helping you. Every application **MUST** contain the signature of the applicant (or parent or legal guardian, if applicable). A stamped or typewritten name in place of a signature is not acceptable.

Part 7. Interpreter's Contact Information, Certification, and Signature

If you used anyone as an interpreter to read the instructions and questions on this application to you in a language in which you are fluent, the interpreter must fill out this section; provide his or her name and daytime telephone number. If applicable, the interpreter should provide the name and address of his or her business or organization (if any), his or her mobile telephone number (if any), and his or her email address (if any). The interpreter must sign and date the application.

Part 8. Contact Information, Declaration, and Signature of the Person Preparing this Application, if Other Than the Applicant

This section must contain the signature of the person who completed your application, if other than you, the applicant. If the same individual acted as your interpreter **and** your preparer, that person should complete both **Part 7.** and **Part 8.** If the person who completed this application is associated with a business or organization, that person should complete the business or organization name and address information. Anyone who helped you complete this application **MUST** sign and date the application. A stamped or typewritten name in place of a signature is not acceptable. If the person who helped you prepare your application is an attorney or accredited representative, he or she may need to also submit a completed Form G-28, Notice of Entry of Appearance as Attorney or Accredited Representative, along with your application.

Completing Form I-914, Supplement A, Application for Derivative T Nonimmigrant Status

If you are filing for an eligible family member, you must complete Form I-914, Supplement A, Application for Derivative T Nonimmigrant Status. You must submit Supplement A for each family member for whom you are filing.

You may file Supplement A, concurrently with your initial Form I-914, while your Form I-914 is pending, or at any time while you hold T-1 nonimmigrant status. However, any Supplement A you submit after your initial Form I-914 must have the appropriate boxes selected in **Part 1.**, and may include proof of your T nonimmigrant status. However, you do not need to resubmit evidence submitted with the original application.

This form is divided into **Parts 1. - 8.** The following information should help you fill out the form.

Part 1. Family Member For Whom You Are Filing

1. Select the appropriate box if you are filing for your spouse, child(ren), parent(s), or sibling(s) based on your age. Leave this field blank if you are only applying for your derivative's adult or minor child (see **Item 2.**)
2. Select the box if you are filing for the adult or minor child of your derivative (your grandchild, your spouse's child, your niece or nephew, or your sibling) who faces a present danger of retaliation as a result of your escape from the severe form of trafficking in persons or your cooperation with law enforcement.

NOTE: Although applications for all eligible family members can be filed concurrently, in order to approve the application for the adult or minor child, USCIS must have already approved the Form I-914, Supplement A for their parent.

Please select the appropriate box in either **Item 1.** or **Item 2.**

Part 2. General Information About You (the principal)

1. **Your Full Legal Name.** You should provide your legal name, as shown on your birth certificate, passport, or other legal document. If you have two last names, include both and use a hyphen (-) between the names, if appropriate. Type or print your last, first, and middle names in each appropriate field.
2. **Date of Birth.** You should use eight numbers to show your date of birth (example: May 1, 1979, should be written 05/01/1979).
3. **Alien Registration Number (A-Number)** (if any). Provide your A-Number. We use your A-Number to identify your immigration records. It begins with an "A" and can be found on correspondence you have received from the Department of Homeland Security (DHS) or USCIS. If you do not have an A-Number, type or print "N/A."
4. **Status of your Form I-914, Application for T Nonimmigrant Status.** You must select the appropriate box.

Part 3. Information About Your Family Member (the derivative)

1. **Full Legal Name.** Provide the name of the family member, as shown on their birth certificate, passport, or other legal document. If the person has two last names, include both and use a hyphen (-) between the names, if appropriate. Type or print the person's last, first, and middle names in each appropriate field.
2. **Other Names Used.** Provide all the names you have used, including aliases, maiden name, and nicknames, etc.
3. **U.S. Physical Address or Intended U.S. Physical Address.** Give their intended physical street address. This must include a street number and name or a rural route number. Do not put a post office box (PO Box) number here.
4. **Safe U.S. Mailing Address.** If your relative does not feel secure in receiving correspondence regarding this application at their home address, you may provide a "safe mailing address" in this space. This address may be a post office box, the address of a friend, your/their attorney, a community-based organization, or any other address where he or she can safely and punctually receive mail.
5. **Alien Registration Number (A-Number)** (if any)**.** Provide your A-Number. We use your A-Number to identify your immigration records. It begins with an "A" and can be found on correspondence you have received from the Department of Homeland Security (DHS) or USCIS. If you do not have an A-Number, type or print "N/A."
6. **U.S. Social Security Number.** If your relative does not have a U.S. Social Security Number, please leave this blank.
7. **Sex.** Indicate whether your relative was born a male or female as provided on his or her birth certificate issued at the time of birth or issued closest to the time of birth or secondary evidence provided to USCIS, if applicable.

8. **Marital Status.** Select the appropriate box for their marital status.

9. **Date of Birth.** Provide eight numbers to show their date of birth (example: May 1, 1979, should be written 05/01/1979).

10. **Place of Birth.** Provide the name of the country where he or she was born. Include the city or town, state or province, and country.

11. **Country of Citizenship or Nationality.** Provide the name of the country where he or she is a citizen or national. This is not necessarily the country where he or she was born. If you do not have citizenship in any country, type or print "stateless" and provide an explanation in **Part 8. Additional Information**.

12. **Passport.** Give the number of the passport used to enter the United States, if applicable and if known. Give the location where their passport was issued. Give the date when their passport was issued, even if the passport is currently expired. If the passport he or she used to enter the United States is not available, include an explanation on **Part 8.**

13. **Last Entry Into the United States.** If your relative is currently in the United States, give the date and place where he or she last entered the United States, regardless of whether that entry was legal or illegal.

14. **Form I-94, Arrival/Departure Record.** If U.S. Customs and Border Protection (CBP) or USCIS issued you a Form I-94, Arrival/Departure Record, provide your Form I-94 number and date that your authorized period of stay expires or expired (as shown on your Form I-94). The Form I-94 number also is known as the Departure Number on some versions of Form I-94.

    NOTE: You may visit the CBP website at **cbp.gov/i94** to obtain a paper version of an electronic Form I-94 if needed. If you cannot obtain the Form I-94 from the CBP website, it may be obtained by filing Form I-102, Application for Replacement/Initial Nonimmigrant Arrival-Departure Record, with USCIS. See Form G-1055, available at **uscis.gov/forms**, for specific information about the fees applicable to Form I-102.

    Passport and Travel Document Numbers. If you used a passport or travel document to travel to the United States, enter the passport or travel document information in the appropriate space on the application, even if the passport or travel document is currently expired.

15. **Current Immigration Status.** Provide your relative's current status, regardless of how you entered the United States (visitor, student, entry without inspection etc.).

16. **Previously Traveled to the United States.** Give the following information about your family member if he or she has previously traveled to the United States, if applicable.

17. **Family Member's Prior Marriage(s) Information.** If your family member was previously married, list the names of their prior spouse(s), the dates the previous marriage terminated, the location where and how the marriage(s) terminated.

18. **U.S. Consulate or Inspection Facility Where You Want Notification Sent.** If your family member is outside the United States, indicate the U.S. Consulate or inspection facility you want notified if the Form I-914, Supplement A, is approved.

19. **Foreign Address Where You Want Notification Sent.** If your family member is outside the United States, indicate the address where you want notification sent if the Form I-914, Supplement A, is approved.

20. **Immigration History.** Indicate whether your family member has any immigration proceedings history. If your family member has been in immigration proceedings, complete at least one box.

21. **Employment Authorization.** If the Form I-914, Supplement A, is approved for your family member, he or she is authorized to work. Select the box to indicate if you are applying for an Employment Authorization Document (EAD) for your family member. If you indicate "Yes," each family member must file Form I-765 with the appropriate fee or Form I-912, Request For Fee Waiver, when the Form I-914, Supplement A is filed, or at a later time. Do not file Form I-765 for a family member who is living outside of the United States. If your family member is living outside the United States, he or she is not eligible to receive employment authorization until he or she is lawfully admitted to the United States.

Part 4. Processing Information

You must answer each question about your family member. If you answer "Yes" to any of the questions, provide an explanation in the space provided in **Part 8. Additional Information**.

Part 5. Applicant's Statement, Contact Information, Declaration, Certification, and Signature

Select the appropriate box to indicate whether you read this application yourself or whether you had an interpreter assist you. If someone assisted you in completing the application, select the box indicating that you used a preparer. Further, you must sign and date your application and provide a response to fields requesting your daytime telephone number, mobile telephone number, and email address. You may include a safe daytime phone number such as the number of your attorney or a community-based agency that is helping you. Every application **MUST** contain the signature of the applicant (or parent or legal guardian, if applicable). A stamped or typewritten name in place of a signature is not acceptable.

NOTE: If the family member for whom you are filing is in the United States, he or she must sign and date the application. If he or she does not sign or date the application, then Form I-914, Supplement A, will be rejected as incomplete. If the family member for whom you are filing is outside the United States, only you (the principal applicant) are required to sign and date the form.

Part 6. Interpreter's Contact Information, Certification, and Signature

If you used anyone as an interpreter to read the instructions and questions on this application to you in a language in which you are fluent, the interpreter should provide his or her name and daytime telephone number. If applicable, the interpreter should provide the name and address of his or her business or organization (if any), his or her mobile telephone number (if any), and his or her email address (if any). The interpreter must sign and date the application.

Part 7. Contact Information, Declaration, and Signature of the Person Preparing this Application, if Other Than the Applicant

This section must contain the signature of the person who completed your application, if other than you, the applicant. If the same individual acted as your interpreter and your preparer, that person should complete both **Part 6.** and **Part 7.** If the person who completed this application is associated with a business or organization, that person should complete the business or organization name and address information. Anyone who helped you complete this application **MUST** sign and date the application. A stamped or typewritten name in place of a signature is not acceptable. If the person who helped you prepare your application is an attorney or accredited representative, he or she may be obliged to also submit a completed Form G-28, Notice of Entry of Appearance as Attorney or Accredited Representative, along with your application.

Completing Form I-914, Supplement B, Declaration for Trafficking Victim

Form I-914, Supplement B, is completed by Federal, State, Tribal, or local law enforcement authorities and is then given to you to submit to USCIS.

You are not required to file Form I-914, Supplement B, to prove your claim. However, the endorsement of a Federal, State, Tribal, or local law enforcement authority that has the authority to detect, investigate or prosecute acts of trafficking in persons is one form of evidence that you are a victim of a severe form of trafficking in persons and that you have complied with any reasonable request for assistance in the investigation or prosecution. Follow the additional instructions on Form I-914, Supplement B. If you do not provide the Form I-914, Supplement B, you must provide other evidence to show victimization and cooperation with law enforcement or that you qualify for an exception based on age or trauma. See section "Evidence of Cooperation with Reasonable Requests from Law Enforcement" for additional

Initial Evidence

You must submit:

1. A completed and signed Form I-914;
2. A personal narrative statement;
3. Evidence to establish each eligibility requirement (see next section for details); and

If applying for your family member, you must also submit:

1. A completed and signed Form I-914, Supplement A, for each family member for whom you are applying. You may file Form I-914 Supplement A, at the same time with your initial application or at a later time.

   Any Form I-914, Supplement A, submitted subsequent to the principal applicant's initial filing, however, must have the appropriate boxes selected in **Part 1.** and with an original signature in **Part 6.** and be accompanied by evidence to establish eligibility for each family member (see next section for details).

   NOTE: Evidence submitted with the original Form I-914 does not need to be resubmitted.

NOTE: At the time of filing, you must submit all evidence and supporting documentation listed in the Initial Evidence section of the instructions. You may file your application with any credible evidence of your eligibility. See 8 CFR 214.204(l).

Evidence to Establish T Nonimmigrant Status

You must file Form I-914 with evidence sufficient to demonstrate that you satisfy each of the eligibility requirements. If you have in your possession, or have access to, a document showing how you entered the United States, you must submit a copy of that document with your application.

Applicants may submit "any credible evidence" to establish eligibility for T nonimmigrant status. See 8 CFR 214.204(l). It is within the sole discretion of USCIS to determine what evidence is credible and to determine what weight to give that evidence.

To qualify for T-1 nonimmigrant status, you must demonstrate that you:

1. Are or have been a victim of a severe form of trafficking in persons;
2. Are physically present in the United States, American Samoa, or the Commonwealth of the Northern Mariana Islands, or at a port of entry, on account of trafficking, including physical presence based on your having been allowed entry into the United States to participate in investigative or judicial processes associated with an act or a perpetrator of trafficking;
3. Have complied with any reasonable request for assistance in a Federal, State, Tribal, or local law enforcement investigation or prosecution of acts of trafficking in persons, unless you are under 18 years of age, or you are unable to cooperate with a request due to physical or psychological trauma; andWould suffer extreme hardship involving unusual and severe harm upon removal from the United States.

To establish that you are or have been a victim of a severe form of trafficking in persons, you must demonstrate that you have been a victim of either:

1. Sex trafficking: the recruitment, harboring, transportation, provision, obtaining, patronizing, or soliciting of a person for the purpose of inducing a commercial sex act through the use of force, fraud, or coercion. Inducing an individual under 18 years of age to perform a commercial sex act is considered sex trafficking, regardless of the use of force, fraud, or coercion; or

2. Labor trafficking: the recruitment, harboring, transportation, provision, or obtaining of a person for labor or services through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.

NOTE: Human trafficking and human smuggling are distinct crimes under federal law. Human trafficking is a crime committed against a person, regardless of immigration status, and it does not require crossing a country's border. Smuggling is a crime committed against a country's immigration laws and border, and it involves the willful movement of a person across a country's border. USCIS recognizes that in some situations, human smuggling may turn into human trafficking.

Evidence of Cooperation with Reasonable Requests from Law Enforcement

Form I-914, Supplement B, Declaration for Trafficking Victim (optional)

You are not required to file Form I-914, Supplement B, to prove your claim. However, the endorsement of a Federal, State, Tribal, or local law enforcement officer on Form I-914, Supplement B, is one type of evidence that you are a victim of a severe form of trafficking in persons and that you have complied with any reasonable request from a Federal, State, Tribal, or local law enforcement official for assistance in the investigation or prosecution of the acts of trafficking. USCIS (not the Federal, State, Tribal, or local law enforcement authority) will determine whether you meet the eligibility requirements for T nonimmigrant status. Your eligibility for T nonimmigrant status is not dependent upon whether the law enforcement agency pursues an investigation or prosecution.

If you do not provide a completed Form I-914, Supplement B, you must submit credible evidence to establish that you are or have been a victim of a severe form of trafficking in persons and that you complied with any reasonable request for assistance from law enforcement. Such evidence may include, but is not limited to: trial transcripts, court documents, police reports, news articles, copies of reimbursement forms for travel to and from court, affidavits, a grant of Continued Presence, or any other form of evidence. Even if you do provide Form I-914, Supplement B, you may submit additional evidence.

Although it is not required, you may include information about why you did not provide or attempt to obtain a Supplement B.

If you claim you were unable to cooperate with requests from law enforcement due to physical or psychological trauma, submit evidence of the trauma. This evidence may include:

1. Your personal statement describing the trauma and the surrounding circumstances;
2. A signed statement from a qualified professional such as a medical professional, mental health professional, social worker, or victim advocate attesting to your mental and/or medical condition;
3. Medical or psychological records documenting your trauma or its impact;
4. Witness statements;
5. Photographs;
6. Police reports;
7. Court records and court orders;
8. Disability determinations;
9. Government agency findings; or
10. Any other credible evidence of the trauma.

If you are under 18 years of age, submit evidence of your age. This evidence may include (where available):

1. A copy of your birth certificate or your passport;
2. A certified medical opinion; or

3. Other credible evidence of your age.

Personal Statement

A personal narrative statement is required. Your personal narrative statement should describe, to the best of your recollection, the circumstances of the trafficking you suffered, including:

1. The circumstances surrounding your trafficking including:

- The nature of the victimization; and
- To the extent possible:
  - when the trafficking occurred;
  - how long it lasted;
  - how and when you escaped, were rescued, or otherwise became separated from the traffickers; the events surrounding the trafficking;
  - who was responsible for the trafficking; and
  - the circumstances surrounding your entry into the United States, if related to the trafficking;

2. How your physical presence in the United States relates to your trafficking;

3. The hardship, including harm or mistreatment, you believe you would experience if you are removed from the United States and why; and

4. Whether you have complied with any reasonable law enforcement request for assistance and whether any criminal, civil or administrative records relating to the acts of trafficking exist, if known, (or if applicable, why the age exemption or trauma exception applies).

Evidence to Establish Derivative T Nonimmigrant Status

You, as the principal applicant or as current T-1 nonimmigrant filing for your family members, must file Form I-914, Supplement A, with evidence sufficient to demonstrate that your family members satisfy each of the eligibility requirements.

If you are under 21 years of age, you may file for the following relatives:

1. Spouse;

2. Unmarried child(ren) under 21 years of age;

3. Parent(s); or

4. Unmarried sibling(s) under 18 years of age.

If you are under 21 years of age at the time you file your application, USCIS will continue to consider your parent or unmarried sibling. You may continue to file for your family members even if you turn 21 years of age before your application is adjudicated. Your parent or unmarried sibling will remain eligible for a T visa even if you turn 21 years of age before your application is adjudicated. Similarly, if you have an unmarried sibling, he or she will remain eligible even if he or she is over 18 years of age at the time your application is adjudicated. If you are a principal applicant over 21 years of age, you may apply for your child if he or she was under 21 years of age at the time of the principal application. USCIS will continue to consider a child as an eligible family member if the child was under 21 years of age at the time of the principal application.

If you are over 21 years of age, you may file for the following family members:

1. Spouse; or

2. Unmarried child(ren) under 21 years of age.

If a family member faces a present danger of retaliation as a result of your escape from the severe form of trafficking in persons or cooperation with law enforcement, you may file for the following eligible family members, regardless of your age:

1. Parent(s);

2. Unmarried sibling(s) under 18 years of age; or

3. Adult or minor child of your derivative (your grandchild, your spouse's child, your neice or nephew, or your sibling).

You must include:

1. A completed Form I-914, Supplement A, for each eligible family member you want included on your application.

2. Credible documentation of the claimed relationship. Documents acceptable for this purpose are listed below.

A. Husband or Wife. Submit a copy of your marriage certificate issued by a civil authority.

If either you or your spouse were married before, you must submit documents to show all previous marriages were legally terminated. (Example: a divorce decree or death certificate.)

B. Child, and you are the mother. Submit a copy of the child's birth certificate showing your name and the name of the child issued by a civil authority.

C. Child, and you are the father. Submit a copy of the child's birth certificate issued by a civil authority showing both parents' names and your marriage certificate. If the child was born out of wedlock, give proof that a parent-child relationship exists or existed. (Example: the child's birth certificate showing your name and evidence that you have financially supported the child. In some cases, a blood test may be necessary.)

D. Mother. Submit a copy of your birth certificate issued by a civil authority showing your name and your mother's name.

E. Father. Submit a copy of your birth certificate showing the names of both parents, your parents' marriage certificate establishing that your father was married to your mother before you were born, and copies of documents showing that any prior marriages of either your father or mother were legally terminated. If you were born out of wedlock, provide proof of legitimation, or additional proof that a parent - child relationship exists or existed. See **Item C.** above. If you are filing for a stepparent or adoptive parent, see **Items G.** and **H.** below.

F. Brother or Sister. Submit a copy of your birth certificate and a copy of your brother's or sister's birth certificate showing that you have at least one common parent. If you and your brother or sister have a common father but different mothers, submit copies of the marriage certificates of the father to each mother and copies of documents showing that any prior marriages of either your father or mother were legally terminated. If you and your brother or sister are related through adoption or through a stepparent, or if you have a common father and either of you were not legitimated before your 18th birthday, see also **Items G.** and **H.** below.

G. Stepparent/Stepchild. If your application is based on a stepparent-stepchild relationship, you must file your application with a copy of the marriage certificate of the stepparent to the child's natural parent showing that the marriage occurred before the child's 18th birthday, and copies of documents showing that any prior marriages were legally terminated.

H. Adoptive Parent or Adopted Child. If you and the person you are filing for are related by adoption, you must submit a copy of the adoption decree(s) showing that the adoption took place before the child reached 16 years of age (unless a sibling exception applies).

If the relationship was created by the adoption of the sibling of a child already adopted, then you must submit a copy of the adoption decree(s) showing that the adoption of the sibling took place before the child became 18 years of age.

In either case, you also must submit copies of evidence showing that each child was in the legal custody of and jointly resided with the parent(s) who adopted them for two years before or after the adoption. Legal custody may only be granted by a court or recognized government entity and is usually granted at the time the adoption is finalized. However, if legal custody is granted by a court or recognized government agency prior to the adoption, that time may count to fulfill the two-year legal custody requirement.

I. Your Unmarried Sibling Under 18 Years of Age. Submit a certified copy of your birth certificate and a copy of your brother's or sister's birth certificate showing that you have at least one common parent.

3. If you are filing for your parents, unmarried siblings under 18 years of age, and/or the adult minor child of another derivative because of a present danger of retaliation based on your escape from the severe form of trafficking in persons or cooperation with law enforcement, you should include the following:

A. A description of the danger the family member faces and how the danger is linked to your escape or cooperation with law enforcement;

B. Documentation of a previous grant of advance parole to a family member, if available; and

C. Any other credible evidence describing the danger of retaliation, including a signed statement from a law enforcement official, a personal statement from the principal applicant or derivative family member, trial transcripts, court documents, police reports, news articles, copies of reimbursement forms for travel to and from court, and affidavits from other individuals.

Waiver of Ground(s) of Inadmissibility

To be eligible for T nonimmigrant status, you must be admissible to the United States. If you or your eligible family member(s) answered "Yes" to one or more of the questions in **Part 4.** of Form I-914 or Form I-914, Supplement A, you or your eligible family member(s) may be inadmissible. USCIS may waive the ground of inadmissibility if:

1. The acts or circumstances were caused by or related to you having been a victim of a severe form of human trafficking, or

2. USCIS finds that it is in the national and public interest to exercise discretion.

If you and/or your eligible family member(s) is or becomes inadmissible under section 212(a) of the Immigration and Nationality Act, you and/or your family member(s) will not be eligible for T nonimmigrant status unless USCIS waives the ground of inadmissibility.

Applicants seeking a waiver of inadmissibility must submit Form I-192, Application for Advance Permission to Enter as a Nonimmigrant (Pursuant to Section 212(d)(3) of the Immigration and Nationality Act). Form I-192 should be filed concurrently with Form I-914. USCIS, in its discretion, will decide eligibility for the waiver.

Where to File?

Please see our website at **uscis.gov/I-914** for the most current information about where to file Form I-914, Supplement A, and Supplement B.

Address Change

If you are not a U.S. citizen, you must notify USCIS of your new address within 10 days of moving from your previous residence. For information on changing your address, go to our website at **uscis.gov/addresschange**, or call the USCIS Contact Center.

NOTE: Do not submit a change of address request to the USCIS Lockbox.

Processing Information

Any Form I-914 that is not signed will be rejected with a notice that Form I-914 is deficient. You may correct the deficiency and resubmit Form I-914. An application is not considered properly filed until accepted by USCIS.

Initial Processing. Once Form I-914 has been accepted, we will be check it for completeness, including submission of the required initial evidence. If you do not properly complete this form or file it without required initial evidence, you will not establish a basis for your eligibility, and we may reject or deny your Form I-914.

Requests for More Information. USCIS may request that you provide more information or evidence to support your application. We may also request that you provide the originals of any copies you submit. If we request an original document from you, we will return it to you after USCIS determines it is no longer needed.

Requests for Interview. We may request that you appear at a USCIS office for an interview based on your application. During your interview, USCIS may require you to provide your biometrics to verify your identity and/or update background and security checks.

Bona Fide Determination Process

USCIS may, in its discretion, grant deferred action to and issue a bona fide determination Employment Authorization Document (EAD) to certain applicants for T nonimmigrant status, and qualifying family members, who live in the United States. To receive a bona fide determination EAD, you **must** file Form I-765, Application for Employment Authorization Document, even if you are a principal applicant.

If you are a principal applicant living in the United States, we will determine your petition is "bona fide" if:

A. Your Form I-914, Application for T Nonimmigrant Status, is complete and properly filed;

B. Your filing includes a signed personal statement describing the victimization; and

C. We have received results from your initial background checks, and they do not present national security concerns.

Once we determine your principal application is bona fide, we will consider relevant discretionary factors in determining whether to grant deferred action and issue a bona fide determination EAD.

The application for your eligible family member living in the United States may only receive a bona fide determination if your principal application has been determined to be bona fide.

We will determine your eligible family member's application is bona fide if:

A. You, the principal applicant, have properly filed a complete Application for Derivative T Nonimmigrant Status (Form I-914, Supplement A);

B. Your Form I-914, Supplement A includes credible evidence of the qualifying family relationship; and

C. Your eligible family member's initial background checks are complete and do not present national security concerns.

Once we have determined your eligible family member's application is bona fide, we will consider relevant discretionary factors when determining whether to grant deferred action and issue a bona fide determination EAD to your eligible family member.

NOTE: USCIS will conduct BFD reviews for those Forms I-914 filed on or after August 28, 2024.

Employment Authorization

To receive a bona fide determination EAD, you must file Form I-765, Application for Employment Authorization, under 8 CFR 274a.12(c)(40) even if you are a principal applicant.

If you have previously applied for an EAD under 8 CFR 274a.12(a)(16) or (c)(25) with your Form I-914 or Form I-914 Supplement A, do not file another Form I-765. We will convert your previously filed application to a bona fide determination employment authorization application.

If we determine your petition is bona fide and a favorable exercise of discretion is warranted, but you have **not** filed a Form I-765 which can be converted as described above, we will notify you that you may apply for a bona fide determination EAD. You must include the notice when filing your Form I-765.

If your application is approved, you will be authorized to work. If you are the principal applicant, USCIS will send an EAD as evidence of your authorization to work if you indicate "Yes" for Form I-914, **Item Number 10.** in **Part 3.** As the principal applicant, you do not need to file Form I-765, to receive an EAD, unless you wish to be considered for a bona fide determination EAD. Your family members may apply for employment authorization if Form I-914, Supplement A, is approved. If your derivative family member wants to apply for employment authorization, he or she must file Form I-765. Form I-765 can be filed with Form I-914, Supplement A, or at a later time. If your family member is living outside the United States, he or she is not eligible to receive employment authorization until he or she is lawfully admitted to the United States. Do not file Form I-765 for a family member who is living outside of the United States.

Travel While Your Form I-914 Is Pending

Filing of an application for T nonimmigrant status does not grant you permission to travel outside the United States. Departing from the United States while your application is pending could impact your ability to establish eligibility for T nonimmigrant status. Additionally, departing from the United States while your application is pending could impact your ability to return to the United States unless you or your family member have another status which permits travel. Even if you, as a T-1 applicant, have another status that permits reentry into the U.S., it may be difficult to establish your physical presence on account of trafficking as required by 8 CFR 214.207 if you depart the U.S. after your trafficking has ended.

Travel After Your Form I-914 is Approved

For a T-1 nonimmigrant to depart the United States and return to the United States in T-1 nonimmigrant status, he or she must file a Form I-131, Application for Travel Documents, Parole Documents, and Arrival/Departure Records, and obtain advance parole prior to departure.

A T-1 nonimmigrant who departs the United States and returns through means other than an advance parole document issued prior to departure or admission at a designated port of entry with a T nonimmigrant visa does not resume T nonimmigrant status and may have to reapply for such status.

For a T-2, T-3, T-4, T-5, or T-6 nonimmigrant to depart the United States and return to the United States in T nonimmigrant status, he or she must either:

1. File a Form I-131, Application for Travel Documents, Parole Documents, and Arrival/Departure Records, and obtain advance parole prior to departure, or
2. Apply for and receive a T nonimmigrant visa from the Department of State and seek admission as a T nonimmigrant at a designated port of entry.

Decision

The decision on Form I-914 involves a determination of whether you have established eligibility for T nonimmigrant status. You will be notified of our decision in writing.

Confidentiality

Information concerning principal applicants for T nonimmigrant status and the family members they apply for is protected under 8 U.S.C. Section 1367. The disclosure of information relating to an individual with a pending or approved application for T nonimmigrant status is prohibited except in certain limited circumstances. These circumstances may include, but are not limited to, disclosure of information to law enforcement agencies with the authority to detect, investigate, or prosecute severe forms of trafficking in persons; non-governmental victims' service providers for the sole purpose of assisting victims in obtaining victim services from programs with expertise working with immigrant victims; and for purposes of national security.

USCIS Forms and Information

To ensure you are using the latest version of this application, visit **uscis.gov**.

Penalties

If you knowingly and willfully falsify or conceal a material fact or submit a false document with your Form I-914, we will deny your Form I-914 and may deny any other immigration benefit. In addition, you will face severe penalties provided by law and may be subject to criminal prosecution.

DHS Privacy Notice

AUTHORITIES: The information requested on this application, and the associated evidence, is collected under Public Law106-386 sections 107(e) and 1513(c) and 8 U.S.C. 1101(a)(15)(T).

PURPOSE: The primary purpose for providing the requested information on this application is to determine whether you have established eligibility for the temporary immigration benefit you are applying for. DHS uses the information you provide to grant or deny the immigration benefit you are seeking.

DISCLOSURE: The information you provide is voluntary. However, failure to provide the requested information, including your Social Security number (if applicable), and any requested evidence, may delay a final decision or result in a rejection or denial of your application.

ROUTINE USES: DHS may, where allowable under relevant confidentiality provisions, share the information you provide on this application and any additional requested evidence with other Federal, state, local, and foreign government agencies and authorized organizations. DHS follows approved routine uses described in the associated published system of records notices [DHS/USCIS-001 - Alien File, Index, and National File Tracking System and DHS/USCIS-007 - Benefits Information System] and published the privacy impact assessment [DHS/USCIS/PIA-016(a) Computer Linked Application Information Management System and Associated Systems], which you can find at **dhs.gov/privacy**. DHS may also share this information, as appropriate, for law enforcement purposes or in the interest of national security.

Paperwork Reduction Act

USCIS may not conduct or sponsor an information collection, and you not required to respond to a collection of information unless it displays a currently valid Office of Management and Budget (OMB) control number. The public reporting burden for Form I-914 is estimated at 2.63 hours per response, and an estimated 1.17 hours for biometrics processing. The public reporting burden for Form I-914, Supplement A, is estimated to be 1.08 hours per response, including the time for reviewing instructions, completing and submitting the form. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to: U.S. Citizenship and Immigration Services, Office of Policy and Strategy, Regulatory Coordination Division, 5900 Capital Gateway Drive, Mail Stop #2140, Camp Springs, MD 20588-0009. OMB No. 1615-0099. **Do not mail your completed Form I-914 and Form I-914, Supplement A to this address.**

Checklist

Fill out the checkboxes. This will ensure that you have completed the form properly.

☐ **1.** I completely filled out and signed the form.

☐ **2.** I have attached evidence that:

- ☐ **A.** I am or have been a victim of a severe form of trafficking;
- ☐ **B.** I am physically present in the United States, American Samoa, or the Commonwealth of the Northern Mariana Islands, or at a port of entry, on account of trafficking, or I have been allowed entry into the United States to participate in investigative or judicial processes associated with an act or a perpetrator of trafficking.
- ☐ **C.** I am cooperating with Federal, state, local, or tribal law enforcement authorities in the investigation or prosecution of the trafficker(s) (unless under 18 years of age or I am unable to cooperate with such requests due to physical or psychological trauma); and
- ☐ **D.** I would suffer extreme hardship involving unusual and severe harm upon removal from the United States.

☐ **3.** I have included a personal narrative statement.

If I am applying for one or more family members:

☐ **1.** I have completed Form I-914, Supplement A for each family member for whom I am now applying and, if they are in the United States, each family member has signed that Form I-914, Supplement A.

☐ **2.** I have submitted the required evidence, including evidence of:

- ☐ **A.** My relationship to the family member for whom I am applying;
- ☐ **B.** My age, if I am applying for my parent or unmarried sibling under 18 years of age;
- ☐ **C.** My child's age, if I am applying for my child;
- ☐ **D.** My sibling's age, if I am applying for my unmarried sibling; and
- ☐ **E.** If applicable, present danger of retaliation my relative faces as a result of my escape from trafficking or my cooperation with law enforcement.

☐ **3.** I will or have filed Form I-765 for each family member requesting an Employment Authorization Document (EAD).